CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
Thursday, November 29, 2018
4:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 4:00 p.m. on Thursday, November 29, 2018 in the Auditorium at Sherbondy Village, 215 President Barack Obama (Perviz) Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: City Manager Yvette Harrell, City Attorney Vincent Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. PUBLIC INPUT:
Agenda Items Only

6. RESOLUTIONS:

a) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING RESOLUTION(S) PURSUANT TO SECTION 4.5(B) OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, DIRECTING THAT THE AMOUNTS APPROPRIATED FOR CURRENT OPERATIONS FOR THE CURRENT FISCAL YEAR (FY 2017-2018) BE DEEMED ADOPTED FOR THE CURRENT FISCAL YEAR (FY2018-2019) FOR A PERIOD OF FIFTEEN (15) DAYS, AND RENEWED BY RESOLUTION EACH FIFTEEN (15) DAYS, WITH ALL ITEMS PRORATED ACCORDINGLY, UNTIL SUCH TIME AS THE STATE OF FLORIDA FINANCIAL EMERGENCY BOARD FOR THE CITY OF OPA-LOCKA REVIEWS AND APPROVES ANNUAL BUDGETS FOR THE ENSUINF FISCAL YEAR (FY 2018-2019); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolution.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

b) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2017 AND ENDING SEPTEMBER 30, 2018, ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR EXPENDITURES ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley asked if the vacant positions had been filled at this time.

City Manager Harrell said the positions remain open, but some have been posted so they can be fill for FY 2018-2019.

Commissioner Kelley asked if any were police positions.

City Manager Harrell said those positions have been posted for months, and the chief is actively recruiting for officers to fill the positions.

Commissioner Kelley said he did not like that he received the information at the last minute.

Mayor Pigatt agreed that he does not like receiving documents at the last minute. He said he is looking forward to seeing a timeline of the budget process for the next fiscal year so it can be passed on to the residents. He asked the manager why positions were budgeted for, but have not been filled.

City Manager Harrell said she had to have been with the City prior in order to answer that question. However, that has since been corrected and all of the positions have been posted.

Mayor Pigatt said if there is a staff shortage, then why the positions have not been posted. Also why were there funds left over in the Parks Department budget?

Parks and Recreation Director Charles Brown said the left over funds in his budget came from the retirement of the Seniors Coordinator who left before the fiscal year ended which caused the surplus.

Mayor Pigatt asked about the eighty thousand dollars ($80,000.00) that was left in the I.T. Departments budget.

I.T. Director Nelson Rodriguez said the funds came from software that was to be purchased to bring the system up to date, but after recommendations from the auditors, he decided not to purchase the equipment. The plan is to put an RFP out next year for a new system.

Commissioner Burke asked if the Legal Aide position in the City Clerk's Office was a new position and what would be the legal duties of this aide.

City Manager Harrell said the title is misstated and it should be Legislative Aide. This position would report to and assist the commission.

Mayor Pigatt said the position came from the staff shortage in the City Clerk's Office. The aide will be responsible for the mayor and commission and the clerk's office under the supervision of the city clerk.

Mayor Pigatt asked that a budget workshop is held before voting so that changes can be discussed.

City Attorney Brown asked that a job description is provided to the attorney's office to ensure no sunshine laws are being violated.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

c) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, IDENTIFYING ELEVATED RAIL AS THE CITY'S PREFERRED OPTION FOR RAPID MASS TRANSIT WITH ADDITINIONAL CONSIDERATION AND CONSULTATION WITH THE CITY PRIOR TO FINALIZING PROJECT ALIGNMENT; PROVIDING FOR ADOPTION OF REPRESENTAIONS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said he wants an explanation of how this item ended up on the agenda at a special meeting and how did it make the criteria.

City Manager Harrell said that this was not an emergency meeting, it is a special call and therefore it did not require a criteria to be met. It is symbolic of the City's desire for the rail to continue.

Mayor Pigatt said this is something that has been discussed for decades and the residents at the town hall meeting were in full support of it.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes

Mayor Pigatt Yes

7. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Commissioner Riley, seconded by Vice Mayor Kelley to adjourn the meeting at 4:41 p.m.

MAYOR

ATTEST:

CITY CLERK